

**JUSTIFICATION AND APPROVAL FOR OTHER THAN FULL AND OPEN
COMPETITION**

Updated IAW Revolutionary FAR Overhaul 6 and DOI-AAAP-F006

In accordance with Revolutionary FAR Overhaul 6.103 or FAR 13.501(a), the proposed contractual action is pursuant to the statutory authority identified in paragraph 4. This template is required for actions over the Simplified Acquisition Threshold (unless the procurement is acquired as a limited source IAW FAR 8.405-6 or is an Exception to Fair Opportunity IAW FAR 16.505(b)(2)).

1. Agency and Contracting Activity (FAR 6.104-1(a)(1)).

Requiring Agency: U.S. Department of the Interior, Bureau of Reclamation, Central Valley Operations Office, 3310 El Camino Avenue, Suite 300, Sacramento, CA 95821

Contracting Agency: U.S. Department of Interior, Bureau of Reclamation, California Great Basin, 2800 Cottage Way, Sacramento, CA 95825

2. Nature/Description of Action (FAR 6.104-1(a)(2)). The Bureau of Reclamation requires the State of California Department of Water Resources (DWR) to provide snow surveys and resultant water forecasting services. The anticipated contract will be a firm fixed price for 5 years, a base year and 4 options years.

3. Description of Supplies/Services (FAR 6.104-1(a)(3)). The Bureau of Reclamation, Central Valley Operations Office requires snow survey services to provide water forecasts necessary to operate reservoirs within the Central Valley Project, including Shasta Lake, Folsom Lake, New Melones Lake, and Millerton Lake.

The period of performance is expected to be for 5 years, a base year and 4 options years as indicated:

Base Year:	7/01/2026 – 6/30/2027
Option Year 1:	7/01/2027 – 6/30/2028
Option Year 2:	7/01/2028 – 6/30/2029
Option Year 3:	7/01/2029 – 6/30/2030
Option Year 4:	7/01/2030 – 6/30/2031

The anticipated dollar value of this contract is [REDACTED] for the base and all options.

4. Statutory Authority Permitting Other than Full and Open Competition (FAR 6.104-1(a)(4)). *(Check one)*

	Authority	FAR Coverage	Application
☒	41 U.S.C. 1901	FAR 13.501	Only one responsible source using Simplified Acquisition Procedures (above SAT but at or below \$9M)
☐	41 U.S.C. 1903	FAR 13.501	Special emergency procurement authority
☐	41 U.S.C. 3304(a)(1)	FAR 6.103-1	Only one responsible source and no other supplies or services will satisfy agency requirements
☐	41 U.S.C. 3304(a)(1)	FAR 6.103-1(d)	Application for brand-name descriptions
☐	41 U.S.C. 3304(a)(2)	FAR 6.103-2	Unusual and compelling urgency
☐	41 U.S.C. 3304(a)(3)	FAR 6.103-3	Industrial mobilization; engineering, developmental or research capability; or expert services
☐	41 U.S.C. 3304(a)(4)	FAR 6.103-4	International Agreement
☐	41 U.S.C. 3304(a)(5)	FAR 6.103-5	Authorized or required by statute
☐	41 U.S.C. 3304(a)(6)	FAR 6.103-6	National Security
☐	41 U.S.C. 3304(a)(7)	FAR 6.103-7	Public Interest

5. Demonstration of Contractor's Unique Qualifications (FAR 6.104-1(a)(5)).

The DWR is the only source that is authorized in accordance with the California Water Code, Section 228 (as amended by Stats. 1943, Chapter 373) to, "...gather and correlate information and data pertinent to an annual forecast of seasonal water crop, including the making of snow surveys, either independently or in cooperation with any person or any county, State, Federal, or other agency."

The DWR Snow Surveys Section is responsible for the California Snow Surveys Cooperative Program (CSSCP) which includes support from Reclamation and some 40 plus other agencies. Reclamation has supported this program for over 30 years. Reclamation has a direct need for this information, as reservoir operations are dependent upon meaningful and accurate water supply forecasts. Reclamation is an active member of the CSSCP and has provided financial support in the past through contracts/financial assistance agreements with DWR.

6. Description of efforts made to maximize competition (FAR 6.104-1(a)(6)).

Competition is not an option for this requirement as the DWR is the only source authorized by the California Water Code, Section 228, to provide this service.

7. Determination of Fair and Reasonable Cost (FAR 6.104-1(a)(7)).

The anticipated dollar value of the proposed contract is [REDACTED] for the base and 4 option periods. An IGCE was developed using the USDAFS Agreement with DWR, Exhibit B, Attachment 1 pages 126-127. A copy the Agreement titled “Agreement Executed 46-16515 USFS std213” can be found in ECS in file A03 – Customer Compliance Docs. The DWR estimates cost for 5 years to be [REDACTED] and Reclamation agrees to pay [REDACTED] of these costs for the snow surveys conducted in various National forests and the data collected to be uploaded to DWR’s California Data Exchange Center (CDEC) after the data has been received from the USFS. This data is pertinent to the annual forecasts of seasonal water supply for the Sacramento River Basin, American River Basin, Stanislaus River, and the Upper San Joaquin River Basin. According to the Agreement, costs are computed in Accordance with State Administrative Manual Sections 8752 and 8752.1 for direct and indirect costs to include labor, travel, horse pack support, helicopter support and equipment & logistics per location. As a result, the costs have been determined to be fair and reasonable.

8. Description of Market Research Conducted (FAR 6.104-1(a)(8)).

Market research was conducted on the Dynamic Small Business Site and internet searches. No small or large businesses were identified as being able to provide this service. The result of the market research demonstrates that DWR is the only contractor that can provide this service. Furthermore, DWR is the only source authorized by the California Water Code, Section 228, to provide this service.

9. Any Other Supporting Facts (FAR 6.104-1(a)(9)). N/A

10. Listing of Interested Sources (FAR 6.104-1(a)(10)).

State of California Department of Water Resources
715 P Street, Sacramento, CA 95814-6400

11. Actions Taken to Remove Barriers to Competition (FAR 6.104-1(a)(11)).

A Notice of Intent to Sole Source will be posted to SAM.gov in an attempt to identify potential sources for this and future requirements.